

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JAHMAL FAUX,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, TIFFANY JEFFRIES,
SHIELD 623, AND JOHN DOES 1-2,

Defendants.

SUMMONS

Plaintiff designates
New York County
as the place of trial

The basis of venue is CPLR §
504(3)

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: Albany, New York
October 4, 2022

s/ Jessica Gorman

Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
961 Broadway, Suite 102
Woodmere, New York 11598
(212) 500-3273
jgorman@lebedinkofmanlaw.com

Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

DETECTIVE TIFFANY JEFFRIES, SHIELD 623, 32ND PRECINCT, 250 WEST 135TH STREET, NEW YORK, NY 10030-2802

DETECTIVE JOHN DOE 1, DETECTIVE 32ND PRECINCT, 250 WEST 135TH STREET, NEW YORK, NY 10030-2802

DETECTIVE JOHN DOE 2, 32ND PRECINCT, 250 WEST 135TH STREET, NEW YORK, NY 10030-2802

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JAHMAL FAUX,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, TIFFANY JEFFRIES,
SHIELD 623, AND JOHN DOES 1-2,

Defendants.

VERIFIED COMPLAINT

**JURY TRIAL
DEMANDED**

JAHMAL FAUX, by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, TIFFANY JEFFRIES, SHIELD 623, AND JOHN DOES 1-2, upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the United States Constitution.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

PARTIES

3. At all relevant times, Plaintiff resided in New York County, City and State of New York.

4. At all relevant times, Defendant CITY OF NEW YORK was a municipal corporation incorporated and existing under the laws of the State of New York, which operated, controlled, and managed Defendant New York City Police Department.

5. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT was and is an agency of Defendant City, and directly supervised the individually named Defendants.

6. Upon information and belief, at all relevant times, Defendant TIFFANY JEFFRIES, SHIELD 623, was a Detective with the New York City Police Department working out of the 32nd Precinct Detective Squad. This Defendant is sued in her individual and official capacities.

7. Upon information and belief, at all relevant times, Defendant JOHN DOE 1 was a Detective with the New York City Police Department working out of the 32nd Precinct Detective Squad. This Defendant's identity is not currently known to Plaintiff. However, he is one of the Detectives who participated in the investigation, arrest, charge, and prosecution of Plaintiff in this case. This Defendant is sued in his individual and official capacities.

8. Upon information and belief, at all relevant times, Defendant JOHN DOE 2 was a Detective with the New York City Police Department working out of the 32nd Precinct Detective Squad. This Defendant's identity is not currently known to Plaintiff. However, he is one of the Detectives who participated in the investigation, arrest, charge, and prosecution of Plaintiff in this case. This Defendant is sued in his individual and official capacities.

9. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

10. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

FACTS

11. On October 8, 2019, the Plaintiff, Jahmal Faux, was falsely arrested and charged with a crime he did not commit.

12. He was on parole at that time, and when he reported to his parole office, he was arrested by New York City Police Department officers and brought to the 32nd Precinct.

13. At the Precinct, he was interrogated by Detectives, including Defendant Detective Tiffany Jeffries, about an evidence tampering incident that happened about a month earlier.

14. Upon information and belief, Mr. Faux denied participating in that crime, and although there was not sufficient or reliable evidence to do so, Defendant Jeffries nonetheless charged him with felony tampering with physical evidence.

15. Upon information and belief, Defendants Detectives John Does 1-2 also participated in the investigation and/or interrogation of Mr. Faux, and in causing his arrest, charge, and prosecution.

16. Mr. Faux was processed, arraigned, and sent to Riker's Island.

17. He was incarcerated until June 12, 2020.

18. As he was on parole at the time, parole also held him based on this charge for at least some of the time he was incarcerated.

19. The charge against Mr. Faux was eventually dismissed and terminated in his favor.

20. As a result of the false arrest, charge, and prosecution, Mr. Faux was incarcerated for a total of 248 days, or a little more than eight months.

21. In addition to suffering the indignity of incarceration and prosecution for a crime he did not commit, Mr. Faux also contracted covid while at Riker's.

22. He also lost his job, and suffered from increased anxiety and increased fear when leaving his home.

23. This is not the first time police officers in the 32nd Precinct have been charged with violating the civil rights of citizens. Officers, including Detectives, have a history of such violations.

24. Since 2005, there have been hundreds of complaints and allegations against officers in this Precinct, with about 130 of them substantiated against some 66 different officers, including detectives, sergeants, and lieutenants. Several officers have had multiple substantiated complaints.

25. The substantiated charges include a variety of civil rights violations like excessive force, threats of force, retaliatory arrests and summonses, illegal stops, frisks, and searches of people, cars, and homes, as well as violations for things like interference with recording, refusal to provide shield numbers or to process civilian complaints, and using slurs.

26. Twenty of the 66 officers with substantiated charges, nearly a third, are detectives, lieutenants, and sergeants.

27. Additionally, a host of successful lawsuits have been brought in Supreme and federal courts for civil rights violations against many officers in this Precinct, including detectives and supervisory officers.

28. Defendant Jeffries has been a named Defendant in four separate lawsuits in State

and federal courts charging her with civil rights violations. One of those lawsuits is still pending in federal court. Two of them brought in this Court settled in 2014 and 2020.

29. In one of these cases (*Bristole v. City of New York, et. al.*, Index No.: 152894/2013), Defendant Jeffries and other officers from the 32nd Precinct are charged with unlawfully stopping and searching Plaintiff's car and Plaintiff, then arresting, charging, and causing his prosecution for drug possession despite the lack of probable cause to do so.

30. In *Alvarez v. City of New York, et. al.*, Case 1:11-cv-05464-AT (SDNY), officers were charged with shooting the Plaintiff, then actively covering up their actions by lying about them publicly and under oath, and failing to preserve and destroying evidence, among other egregious acts. Defendant Jeffries was among the officers alleged to have falsely arrested and charged the Plaintiff with attempted murder of a police officer, and falsifying information for the criminal complaint.

CAUSES OF ACTION

FIRST CAUSE OF ACTION AGAINST DEFENDANTS JEFFRIES AND JOHN DOES 1-2 PURSUANT TO 42 U.S.C. § 1983 FALSE ARREST

31. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

32. As set forth above, these Defendants arrested Mr. Faux, then brought false charges against him without probable cause and for crimes he did not commit.

33. This violated his constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS JEFFRIES AND JOHN DOES 1-2
PURSUANT TO 42 U.S.C. § 1983
MALICIOUS PROSECUTION

34. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

35. As set forth above, these Defendants knowingly and intentionally caused Mr. Faux to be prosecuted without probable cause and without legal justification.

36. He spent more than eight months incarcerated while he was prosecuted on false charges.

37. This violated Mr. Faux's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

THIRD CAUSE OF ACTION AGAINST DEFENDANTS JEFFRIES AND JOHN DOES 1-2
PURSUANT TO 42 U.S.C. § 1983
FALSE IMPRISONMENT

38. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

39. As set forth above, these Defendants knowingly and intentionally falsely arrested and charged Mr. Faux, then caused him to be prosecuted without probable cause, without legal justification, and on a false charge. He was incarcerated for over eight months as a result.

40. This violated Mr. Faux's constitutional right to be free from false imprisonment, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK AND
NYPD
PURSUANT TO 42 U.S.C. § 1983

**IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID
VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

41. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

42. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the police department on a variety of subjects including detentions and arrests, searches and seizures, prosecution, and other areas of importance to the Constitutional rights of citizens.

43. In the alternative, and upon information and belief, the City and Police Department have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens by failing or refusing to enforce them.

44. Upon information and belief, the City and Police Department have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens.

45. As set forth above, Defendants Jeffries and John Does 1-2 knowingly and intentionally arrested and charged Mr. Faux, then caused him to be prosecuted and imprisoned for months without probable cause, without legal justification, and on a false charge.

46. Upon information and belief, these Defendants could have only taken these actions with the knowledge and actual or implicit approval of their supervisors.

47. As detailed above, incidents like these are part of a larger pattern and practice in the 32nd Precinct, and in the NYPD as a whole. This precinct has a long history of numerous police officers, including lieutenants, detectives, and sergeants, routinely violating the civil rights of

citizens with impunity. Not only have supervisors in the precinct participated in these violations, but upon information and belief, higher-ups in the NYPD and in the City have turned a blind eye to these violations, thereby allowing them to continue.

48. In light of the numerous substantiated charges and numerous successful lawsuits brought against multiple officers, including Detectives, in the 32nd Precinct, higher-ups had to know what was happening. They either failed to more closely examine the Defendant officers' actions with regard to Mr. Faux or they turned a blind eye to their violations. They did this despite the fact that serious questions should have been raised.

49. Yet, upon information and belief, the Defendant City of New York and the New York City Police Department failed to more closely supervise or monitor these officers or to provide extra training or take any other remedial or preventative steps to ensure they acted in compliance with the law.

50. The violations against Mr. Faux occurred in accordance with these very practices policies, and customs, through the City and the Police Department's failures to act on information indicating violations were occurring, and through its gross negligence in supervising subordinates, including the individually named Defendants here.

51. These actions and inactions violated Mr. Faux's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

DEMAND FOR JURY TRIAL

52. Plaintiff hereby demands a jury trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;
- B. A judgment for punitive damages against all Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: Albany, New York
October 4, 2022

s/ Jessica Gorman

Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
961 Broadway, Suite 102
Woodmere, New York 11598
(212) 500-3273
jgorman@lebedinkofmanlaw.com

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: Albany, New York
October 5, 2022

s/ Jessica Gorman
Jessica Gorman, Esq.